

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. AND OCEAN NETWORK
EXPRESS (NORTH AMERICA) INC. - POSSIBLE VIOLATIONS OF
46 U.S.C. § 41102(C)**

**BUREAU OF ENFORCEMENT’S MOTION TO COMPEL DISCOVERY DIRECTED
TO
OCEAN NETWORK EXPRESS PTE. LTD.**

Pursuant to Rule 69 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.69, the Bureau of Enforcement (“BOE”) files this motion seeking an order compelling Ocean Network Express PTE. LTD (“ONE PTE”) (“Respondent”) to answer and to respond to discovery demands contained in BOE’s First Interrogatories, Requests for Production of Documents, and Request for Admissions.

Rule 150 of the Commission’s Rules of Practice and Procedure specifically provide for a motion to compel. 46 C.F.R. § 502.150. A copy of the discovery requests that have not been answered or for which evasive or incomplete responses are attached as Exhibits 1, 2, and 3.

Given the nature and scope of the Commission Order, BOE’s request is reasonably calculated to lead to the discovery of admissible evidence.

Unless otherwise limited by the presiding officer, or as otherwise provided in this subpart, the scope of discovery is as follows: Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense - including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. For good cause, the presiding officer may order discovery of any matter relevant to the subject matter involved in the action. Relevant information

need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence.

46 C.F.R. § 502.141(e)(1).

On April 20, 2022, BOE conferenced to discuss discovery matters. BOE followed up with an e-mail request with opposing counsel the next day, April 21, 2022 (Exhibit 3). To date, BOE has received no response. Respondents have either ignored, refused to respond, or conditioned production to obtain discovery materials in this matter, Docket 21-17.

BOE is requesting the presiding officer to issue an order to compel ONE PTE to provide the requested information. Discovery is scheduled to close in this matter on May 2, 2022, just 6 days from now; leaving BOE very little time, and very little choice, but to file this motion.

SPECIFIC INTERROGATORIES, REQUESTS FOR DOCUMENT PRODUCTION,
AND REQUESTS FOR ADMISSION

A. Respondent ONE PTE's Responses

1. Responses to Requests for Admission 11, 13, 15, 16, 18, 19, 29, 31

In each Request for Admission BOE is seeking a complete response and information relating to Respondent's corporate policy and practice. BOE's requests in Exhibit 1 and Exhibit 2 are clear, specific, and a tailored to produce relevant information, practices, and policies of ONE PTE. What is not clear is Respondent's response to BOE's discovery requests. For example, in each of BOE's Request for Admissions, Respondent stonewalls and prevent BOE from understanding how the carrier conducts its business. Respondent's failure to answer the interrogatories frustrates the Commission's ability to determine if the claims of unlawful activity alleged in the notice of investigation are true.

2. Responses to Interrogatories 1, 2, 3, 4, 5, 6, 7, 11, 12, 13, 14, 19, 24, 29

In each interrogatory listed above BOE is seeking a complete response and information relating to Respondent's corporate policy and practice, bill of lading details, how Respondent (or its agent) assesses charges, "to whom" under the bills of lading at issue are charges assessed, and "why" under the bills of lading were the charges assessed. Furthermore, BOE is requesting through interrogatories the names ONE PTE officials to depose to ask questions regarding company policies.

BOE's interrogatories listed above are clear, specific, and a tailored to produce relevant information, practices, and policies of ONE PTE. The Respondent's "canned objections" to interrogatories is an attempt to stonewall and prevent BOE from understanding how ONE PTE conducts its business. Failure of Respondent to answer the interrogatory frustrates the Commission's ability to determine if the claims of unlawful activity alleged in the notice of investigation are true.

3. Responses to Requests for Production of Documents 1, 2, 3, 5

Respondent has failed to produce documents that BOE seeks; more specifically, corporate governance documents. **BOE specifically requests a copy of the ONE PTE/ONE North America, Inc. ("ONE NA") "agency agreement."** Without this document BOE is unable to determine the relationship between ONE PTE and ONE NA. Respondent refused to provide this document as it believes that its assertion that ONE NA is an agent of ONE PTE is enough. This assertion does not satisfy BOE's request to understand the relationships between ONE PTE and ONE NA. Respondent's argument that documents on file at the Commission are dispositive as to VOCC status is unpersuasive.

4. Confidentiality Agreement/Protective Order

Respondent has offered to provide some corporate documents; but won't state what the documents are, and only "if," BOE signs a broad confidentiality agreement. BOE refused to sign a blank agreement. When asked, ONE PTE provided limited explanation as to "why" a broad confidentiality agreement was required. ONE PTE's explanation consisted of words, "the ONE NA agency agreement is complicated."

BOE is not required to sign a broad confidentiality agreement to determine if the carrier even has the information that BOE seeks. "A party or person from whom discovery is sought may move for a protective order." 46 C.F.R. § 502.141(j). Respondent should be compelled to produce all corporate documents related to BOE requests. ONE PTE has sole custody of their corporate documents and the names of persons who manage these documents and/or answer questions relating to corporate policies. If ONE PTE believes it needs a protective order, it should petition the presiding officer. Alternatively, ONE PTE should produce the documents.

WHEREFORE, BOE respectfully requests that the ALJ issue an order compelling Respondent to respond fully to the interrogatories and to produce all responsive documents sought in BOE's First Request within five (5) days of the order.

DATED: April 26, 2022

Respectfully Submitted,

Theron R. Korsak

Digitally signed by Theron R.
Korsak
Date: 2022.04.26 17:41:04 -04'00'

Benjamin K. Trogdon, Director
BTrogdon@fmc.gov

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Theron Korsak, Trial Attorney
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Bureau of Enforcement
Federal Maritime Commission
800 N. Capitol St., N.W.
Washington D.C. 20573
(202) 523 5783

CERTIFICATE OF SERVICE

I certify that on the 26th day of April, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

**Theron R.
Korsak**

Digitally signed by Theron
R. Korsak
Date: 2022.04.26 17:41:31
-04'00'

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Exhibit 1

Responses of Ocean Network Express, Pte. Ltd. to Bureau of Enforcement First Request for Admissions

Exhibit 2

Ocean Network Express, Pte. Ltd. Responses and Objections to the Bureau of Enforcement First Interrogatories

Exhibit 3

BOE e-mail to ONE PTE/ONE NA counsel providing clarity and detailed information that BOE seeks.

Exhibit 4

Rule 150 (a)(2) Certification

Exhibit 1

ONE PTE's Responses to Requests for Admission 11, 13, 15, 16, 18, 19, 29, 31

11. ONE has a policy, regulation, or tariff rule of allowing shipments free time.

RESPONSE: Objection. ONE objects to the term “policy” as used in this request as vague and ambiguous and subject to multiple interpretations without being specifically defined.

Subject to and without waiving the foregoing objections, ONE admits that shipments receive or do not receive free time in accordance with ONE's tariff and/or service contract(s) (or other contract(s) in the case of exempt commodities).

13. ONE has a policy, regulation, or tariff rule of assessing freight and/or surcharges (including detention and/or demurrage) on shipments moved by ONE.

RESPONSE: Objection. ONE objects to this request as overly broad, vague, and ambiguous to the extent that the term “surcharges” is not specifically defined and is subject to multiple interpretations. ONE objects to the term “policy” as used in this request as vague and ambiguous and subject to multiple interpretations without being specifically defined. ONE further objects to this request to the extent that it calls for a legal conclusion. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, ONE admits that ONE does assess freight and/or detention and demurrage when owed to ONE.

15. ONE's policies, regulations, and tariff rules concerning freight and/or surcharges (including free time, detention, and demurrage) are related to or are connected with receiving, handling, storing, or delivering property.

RESPONSE: ONE objects to the term "policies" as used in this request as vague and ambiguous and subject to multiple interpretations without being specifically defined. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term "surcharges" is not specifically defined and is subject to multiple interpretations. ONE further objects to this request to the extent that it calls for a legal conclusion. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing, ONE admits that some actions relating to freight, free time, detention and demurrage are related to or are connected with receiving, handling, storing, or delivering property, as that term is used in 46 U.S.C. 41102(c).

16. ONE's practices, processes, and methods customarily and regularly followed in the ordinary course of ONE's business that concern freight and/or surcharges (including free time, detention, and demurrage) are related to or are connected with receiving, handling, storing, or delivering property.

RESPONSE: Objection. ONE objects to the terms “processes” and “methods” as used in this request as vague and ambiguous and subject to multiple interpretations without being specifically defined. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term “surcharges” is not specifically defined and is subject to multiple interpretations. ONE further objects to this request to the extent that it calls for a legal conclusion. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks an admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, ONE admits that some actions relating to freight, free time, detention and demurrage are related to or are connected with receiving, handling, storing, or delivering property, as that term is used in 46 U.S.C. 41102(c).

18. ONE has a policy, regulation, or tariff rule to hold liable, for all freight and/or surcharges applicable to a shipment, any person falling within ONE’s definition of Merchant.

RESPONSE: Objection. ONE objects to the term “policy” as used in this request as vague and ambiguous and subject to multiple interpretations without being specifically defined. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term “surcharges” is not specifically defined and is subject to multiple interpretations. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, denied.

19. In its ordinary course of business, ONE customarily and regularly holds liable, for all freight and/or surcharges applicable to a shipment, person(s) falling within ONE's definition of Merchant.

RESPONSE: Objection. ONE objects to this request as overly broad, vague, and ambiguous to the extent that the term "surcharges" is not specifically defined and is subject to multiple interpretations. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding. ONE further objects to this request to the extent that it calls for a legal conclusion.

Subject to and without waiving the foregoing objections, denied.

29. In the Texas Litigation, ONE named Greatway as a defendant based on ONE's definition of "Merchant" in ONE's B/L Terms.

RESPONSE: Denied as written. ONE named Greatway as a defendant in the Texas Litigation based upon the factual circumstances surrounding the Subject Shipments, including Greatway's refusal to permit a requested amendment to the bills of lading at issue, and the terms and conditions of ONE's bills of lading.

31. In the Texas Litigation, ONE did not define its role and business relationship with respect to ONE NA.

RESPONSE: Objection. ONE objects to this request as overly broad, vague, and ambiguous to the extent that the term "define," "role," and business relationship" are not specifically defined and are subject to multiple interpretations. ONE further objects to the extent

this requests is not reasonably tailored to lead to the discovery of admissible evidence or otherwise narrow contested issues of fact

Subject to and without waiving the foregoing objections, denied in part and admitted in part. ONE admits it did not state the roles or relationship between itself and ONE NA in its pleadings filed in the Texas Litigation. However, the relationship may have been discussed generally amongst counsel for ONE and the other parties in the Texas Litigation in connection with negotiating the joint stipulated dismissal of ONE NA.

Exhibit 2

Responses to Interrogatories 1, 2, 3, 4, 5, 6, 7, 11, 12, 13, 14, 19, 24, 29

1. Identify to any Interrogatory or portion thereof and identify the Interrogatories to which such person furnished information or records.

ANSWER: These interrogatories were answered by Jacob K. Lee with assistance of counsel.

2. Identify all of ONE's policies, procedures, regulations, practices, processes, methods, and tariff rules relating to freight and/or surcharges that are presently in effect, and if different, those in effect at the time of the Subject Shipments. Specifically include those policies, procedures, regulations, practices, processes, methods, and tariff rules related to detention and/or demurrage, billing, collection, waiver, reduction, and any dispute resolution process.

ANSWER: Objection. ONE objects to this request as overly broad, harassing, and unduly burdensome.

More specifically, the request is not reasonably tailored in scope to lead to the discovery of admissible evidence. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term "surcharges" is not specifically defined and is subject to multiple interpretations. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and information regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, ONE has different tariff rules relating to freight and/or surcharges for different destination ports, which are publicly available online at http://ecomm.one-line.com/ecom/CUP_HOM_3701.do ONE's Detention and Demurrage Policy is publicly available at: <https://us.one-line.com/standard-page/dfrd>.

3. Identify any changes to ONE's policies, procedures, regulations, practices, processes, methods, and tariff rules relating to freight and/or surcharges. Specifically include those policies, procedures, regulations, practices, processes, methods, and tariff rules related to detention and/or demurrage, billing, collection, waiver, reduction, and any dispute resolution process made pursuant to or after May 18, 2020 (the effective date of the Commission's Interpretive Rule on Demurrage and Detention Under the Shipping Act, 85 Fed. Reg. 29638 (May 18, 2020)).

ANSWER: Objection. ONE objects to this request as overly broad, harassing, and unduly burdensome.

More specifically, the request is not reasonably tailored in scope to lead to the discovery of admissible evidence. ONE further objects to this request to the extent it relates to the Commission's Interpretive Rule on Demurrage and Detention Under the Shipping Act, 85 Fed. Reg. 29638 (May 18, 2020) or to policies other than the "Merchant" clause in ONE's bill of lading.

Subject to and without waiving the foregoing objections, since May, 2020, ONE has not made any changes to policies or procedures related to the “Merchant” clause in its bills of lading. Since ONE launched in 2018, ONE has continued to develop and refine its policies relating to detention and demurrage. As a prime example, in the interest of streamlining and simplifying the assessment and collection of demurrage, ONE is implementing a nationwide customer portal, known as eModal.

This eModal portal will be used for both reporting to customers and their truckers the last free day/current demurrage charges, and for processing collection of those charges. This eModal portal will additionally provide ONE’s customers with a single access point to receive information on demurrage and pay demurrage. Second, ONE amended its tariff rule (effective May 1, 2021) on the assessment of demurrage charges during government (e.g., U.S. CBP) inspections at Customs Exam Site (CES) facilities. The updated tariff rule stops the clock on demurrage if a container is drayed off-site to a CES location, so that demurrage will not accrue during the time the container is off-site. This policy/tariff amendment ensures that shippers are not assessed demurrage by ONE when the container is being held at a CES location for a government inspection. Third, effective May 1, 2021, ONE amended its policy and practice on the calculation of the Demurrage Free Receive Date (DFRD). This amendment was in response to the current congestion situation on the West Coast.

Pursuant to the amendment, demurrage calculation is now based on the vessel’s estimated berth (ETB) date, and not on the vessel’s estimated arrival (ETA) date. This bridges any potential gap between the dates and ensures that customers are not being billed demurrage due to circumstances beyond their control (i.e., vessel delay in berthing).

4. Identify all shipments from 2018 through present whereby ONE sought to collect freight and/or surcharges (including detention and/or demurrage) against any person or entity pursuant to the following phrase of ONE’s definition of merchant in ONE’s bill of lading: “...anyone acting on behalf of any such person, including but not limited to agents, servants, independent contractors, non-vessel operating common carriers (“NVOCCs”), and freight forwarders.”

ANSWER: Objection. ONE objects to the definitions of “collect” as used by BOE in these requests. Specifically, BOE’s definition of “collect” is overly broad to the extent it includes activities which more reasonably are related to the investigation and development of a claim for freight and/or surcharges. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term “surcharges” is not specifically defined and is subject to multiple interpretations. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, ONE has not sought to collect freight and/or surcharges against a person pursuant to the portion of the “Merchant” definition quoted in this request, other than the two related shipments involved in the Texas Litigation under ONE bills of lading numbers ONEYSAOU24000400 and ONEYSAOU24596300.

5. For those shipments identified in question 4, identify all persons and/or entities (and their corresponding shipments) who objected to such charges based on that person and/or entity not being responsible for payment of the charges at issue.

ANSWER: Objection. ONE objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding. ONE further objects that the reference to “such charges” is vague and unclear.

Subject to and without waiving the foregoing objections, Pacific Lumber Resources, Inc., Greatway Logistics Group, LLC, AGL Transportes Internacionais Ltda-EPP, and AGL Cargo, LLC appeared and answered in the Texas Litigation, denying liability for all charges for the Subject Shipments.

6. Identify all shipments from 2018 through present whereby ONE issued an invoice or sought payment from a person and/or entity other than the person and/or entity that was initially issued an invoice for freight and/or surcharges (including detention and/or demurrage) pursuant to the following phrase of ONE’s definition of merchant in ONE’s bill of lading: “...anyone acting on behalf of any such person, including but not limited to agents, servants, independent contractors, non-vessel operating common carriers ("NVOCCs"), and freight forwarders.”

ANSWER: Objection. ONE objects to this request as overly broad, vague, and ambiguous to the extent that the term “surcharges” is not specifically defined and is subject to multiple interpretations. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and admission regarding freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, ONE has not sought payment of freight and/or surcharges against a person pursuant to the portion of the “Merchant” definition quoted in this request, other than the two related shipments involved in the Texas Litigation under ONE bills of lading numbers ONEYSAOU24000400 and ONEYSAOU24596300.

7. For those shipments identified in question 6, identify all persons and/or entities (and their corresponding shipments) who objected to such charges based on that person and/or entity not being the person and/or responsible for payment of the charges at issue.

ANSWER: Objection. ONE objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks information about freight charges, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objections, Pacific Lumber Resources, Inc., Greatway Logistics Group, LLC, AGL Transportes Internacionais Ltda-EPP, and AGL Cargo, LLC appeared and answered in the Texas Litigation, denying liability for all charges for the Subject Shipments.

11. Explain with specificity the legal and business relationship between ONE and ONE NA to include but not limited to any agency relationships.; for example, does ONE NA take cargo bookings for ONE? Does ONE NA collect debts owed to ONE? Does ONE NA change bills of lading for cargo booked on ONE vessels?

ANSWER: Objection. ONE objects to this request as overly broad, vague, and ambiguous to the extent that the terms “legal relationship” and “business relationship” are not specifically defined and are subject to multiple interpretations. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term “books” is not specifically defined and is subject to multiple interpretations. ONE further objects to this request as asking about multiple subjects in the same question and as unclear whether the examples are questions. ONE further objects to the request to the extent it relates to activities outside the jurisdiction of the FMC.

Subject to and without waiving the foregoing objection, ONE responds as follows: ONE NA is the general agent in North America for ONE Pte. Ltd. and performs duties related to ocean shipping, which can include taking U.S. cargo bookings, collecting debts owed in the U.S. related to ocean shipping, and changing bills of lading for U.S. cargo bookings.

11a. ONE NA is a wholly-owned indirect subsidiary of ONE Pte. Ltd.

11b. ONE NA is the general agent in North America for ONE Pte. Ltd.

11c. ONE NA receives bookings for ONE Pte. Ltd. and can directly accept bookings, in ONE NA's capacity of an agent.

11d. ONE NA has authority to issue invoices for monies owed to ONE Pte. Ltd., but not in ONE NA's own name.

11e. ONE NA can issue or change ONE bills of lading in the capacity of an agent, i.e., as agent for ONE.

12. Explain with specificity the phrase “Function: Business Operation of Ocean Network Express” in relation to the ONE Organizational structure as stated on ONE’s webpage (<https://us.one-line.com/standard-page/organization-structure>).

ANSWER: Objection. ONE objects to this request as overly broad, vague, and ambiguous to the extent that the term “explain with specificity” is not defined and is subject to multiple interpretations. ONE further objects to the request to the extent it relates to activities outside the jurisdiction of the FMC. ONE objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks information about ONE’s Organizational Structures, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objection, "Function: Business Operation of Ocean Network Express" refers to the planning and strategizing of business operations for ONE.

13. Explain with specificity the phrase “Operating Company (Singapore)” in relation to the ONE Organizational structure as stated on ONE’s webpage (<https://us.online.com/standardpage/organization-structure>).

ANSWER: Objection. ONE objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks information about ONE’s Organizational Structures, which is not the subject of or otherwise relevant to the instant proceeding. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term “explain with specificity” is not defined and is subject to multiple interpretations. ONE further objects to the request to the extent it relates to activities outside the jurisdiction of the FMC. ONE objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks information about ONE’s Organizational Structures, which is not the subject of or otherwise relevant to the instant proceeding.

Subject to and without waiving the foregoing objection, "Operating Company (Singapore)" refers to the providing of international ocean transportation services to customers.

14. Identify an officer at ONE that can explain ONE Organizational structure, functions, and policies.

ANSWER: Objection. ONE objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks information about ONE’s Organizational Structures, which is not the subject of or otherwise relevant to the instant proceeding. ONE further objects to this request to the extent it asks about multiple topics. ONE further objects to this request as overly broad, vague, and ambiguous to the extent that the term “functions” and “policies” “and officer” are not defined and are subject to multiple interpretations. Because the request is so broad, ONE cannot reasonably determine what response is called for. If BOE better defines the topics as to which it seeks information, ONE will identify responsive persons.

19. For the Subject Shipments, explain with specificity ONE’s involvement and participation in addressing and/or otherwise responding to a request related to a change or modification of the bill of lading consignee.

ANSWER: Objection. ONE objects to this request as overly broad, harassing, and unduly burdensome. More specifically, the request is not reasonably tailored in scope to lead to the discovery of admissible evidence. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and information regarding matters other than the subject of the instant proceeding and ONE’s usual and customary practices regarding enforcement of the terms and conditions on its bills of lading. Finally, ONE objects to this interrogatory to the extent it calls for a narrative answer that is better suited for a deposition.

Subject to and without waiving the foregoing objections, in early December 2018, ONE, through its agents in the United States and Brazil, investigated the request to change the consignee after the cargo had already cleared U.S. Customs. On December 10, 2018, Greatway responded to the

request advising that the cargo had been cleared through U.S. Customs in the name of the consignee and it would not allow changes to the bills. ONE contacted the U.S. Customs office in Houston, Texas regarding the possibility of an appropriate procedure to modify the consignee after the goods had already cleared customs in the name of the original consignee, and reported internally thereon.

24. For the Subject Shipments, identify the person(s) who paid the ocean freight to ONE for the transportation of the Subject Shipments and the date ONE received the payment.

ANSWER: Objection. ONE objects to this request as overly broad, harassing, and unduly burdensome.

More specifically, the request is not reasonably tailored in scope to lead to the discovery of admissible evidence. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and information regarding matters other than the subject of the instant proceeding and ONE's usual and customary practices regarding enforcement of the terms and conditions on its bills of lading.

ANSWER: Subject to and without waiving the foregoing objections, ONE received freight payments for the Subject Shipments from AGL via wire transfer on January 17, 2019.

29. Explain with specificity the type of Bill of Lading ONE issued relating to the Subject Shipments and whether the surrender of the original bill of lading (OBL) was required for ONE to release the Subject Shipments.

ANSWER: Objection. ONE objects to this request as overly broad, harassing, and unduly burdensome. More specifically, the request is not reasonably tailored in scope to lead to the discovery of admissible evidence. ONE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks and information regarding matters other than the subject of the instant proceeding and ONE's usual and customary practices regarding enforcement of the terms and conditions on its bills of lading.

Responses to Requests for Production of Documents 1, 2, 3, 5

1. Produce all records related to the billing, collection, waivers, reductions, and/or any dispute resolution process for freight and/or surcharges (including detention and/or demurrage) for the shipments identified in Interrogatories 4 through 8.

RESPONSE: ONE has no documents responsive to this request.

2. Produce copies of all policies, procedures, regulations, practices, processes, methods, and tariff rules identified in Interrogatories 2 and/or 3.

RESPONSE: All documents relevant to this request were produced by ONE in the Texas Litigation and are produced again in response to this request.

3. Produce copies of all agreements, documents, correspondence, communications, or other things that evidence the relationships explained in response to Interrogatories 11 and 14.

RESPONSE: Objection. ONE objects to this request to the extent that it is overly broad and not calculated to result in the discovery of admissible evidence. More specifically, Interrogatory 11 calls for documents that have no relationship to any element of BOE's claims against ONE. ONE further objects to the request as it calls for the production of proprietary and commercially sensitive documents. Subject to and without waiving the foregoing objections, ONE is willing to consider supplementing this response upon the entry of a mutually agreeable confidentiality agreement and/or protective order.

Objection. Interrogatory 14 does not call for the production of documents.

5. Produce copies of all records, documents, correspondence, and communications used to support ONE's responses to Interrogatories 16-18, 24-25, and 28-30.

RESPONSE: Objections (in part). Documents responsive to Interrogatory 16 are produced herewith (ONEFMC000001-002553). ONE objects to the production of documents that are publicly available as unduly burdensome. Documents responsive to Interrogatory 17 are available on the FMC website (FMC Agreement No. 201352, Marine Terminal Services Agreement Between the Port of Houston Authority and Ocean Network Express, PTE. LTD. of August 1, 2020). Documents responsive to Interrogatory 18 are produced herewith (ONEFMC000001-002553). Documents responsive to Interrogatory 24-25 are produced herewith (ONEFMC000001-002553). Interrogatories 28-30 do not call for the production of documents.

Exhibit 3

Theron Korsak

From: Theron Korsak
Sent: Thursday, April 21, 2022 7:20 PM
To: Rebecca Fenneman; Eric Jeffrey
Cc: Brenda Doty; Benjamin Trogon
Subject: Follow up to our discussion on Wednesday 20 Apr 22 to resolve discovery issues

Eric/Rebecca,

We conferred on Wednesday, April 20, 2022. You did not fully respond to BOE discovery requests. You responded that without knowing what specific request (numbers), you were unable to answer my questions. BOE considers your responses incomplete.

To resolve the discovery issues, I direct you to the following ONE PTE responses. I request you provide complete answers, produce documents, and provide the names individuals with knowledge.

Responses to Requests for Admission 11, 13, 15, 16, 18, 19, 29, 31

Responses to Interrogatories 1, 2, 3, 4, 5, 6, 7, 11, 12, 13, 14, 19, 24, 29

Responses to Requests for Production of Documents 1, 2, 3, 4, 5

More specific, we seek the following information.

1. ONE PTE/ONE NA agency agreement
2. Corporate documents/policies (ONE PTE and/or ONE NA)
 - a. Collection of fees
 - b. Collection of demurrage
 - c. Collection of detention
 - d. Issuance of bills of lading
3. Does ONE PTE have demise, bareboat, time, or voyage charter agreements in place?
4. Does ONE PTE operate a vessel, or does the ONE PTE use another company?
5. What country does ONE PTE flag its vessels?
6. Does ONE PTE crew its vessels with ONE PTE employees?
7. Does ONE PTE maintain a maritime operation center in the United States? If so, where? Who oversees the maritime operation center? ONE PTE employee? ONE NA employee?
8. Does ONE PTE "accept service of process" in the United States? If yes, who is the proper person to serve? And where (address)?

Names/contact info ONE PTE and ONE NA

1. Who accepts service for ONE PTE in the United States?
2. Who accepts service of process for ONE NA in the United States?
3. Who is the President of ONE NA in the United States?
4. Does ONE PTE maintain an office in the United States? Where?
5. Does ONE PTE have any individual assigned to the United States? Who is the senior person?
6. Who oversees training ONE NA personnel?
 - a. Collect fees?
 - b. Collect demurrage?
 - c. Collect detention?
 - d. Interpret bill of lading terms?

7. Who publishes services contracts?
8. Who publishes tariffs?
9. Who updates the ONE webpage?
10. Who is the ONE PTE training officer?
11. Who is the ONE PTE human resources director?

BOE does not agree to sign a “blanket” confidentiality agreement; however, we are open to discuss a mutually agreeable protective order for individual documents.

Thank you

Theron R. Korsak
Bureau of Enforcement

Federal Maritime Commision
800 North Capitol Street,NW
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Email: tkorsak@fmc.gov

Exhibit 4

I certify, per 46 C.F.R. § 502.150(a)(2), that on April 20, 2022, BOE attorneys and ONE PTE/ONE NA attorneys conferenced with respect to discovery issues in FMC Docket 21-17. A follow up e-mail that contained specific information sought by BOE was provided to ONE PTE/ONE NA on April 21, 2022.

**Theron R.
Korsak**

Digitally signed by Theron
R. Korsak
Date: 2022.04.26 17:40:10
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